

****02.10.2024****

****Sanctions for Non-Compliance with GDPR****

The National Supervisory Authority for Personal Data Processing completed, in September 2024, an investigation into the operator Global Ports's Services S.R.L. and found several violations of the provisions of Regulation (EU) 2016/679 (GDPR), in relation to Article 85 paragraph (5) letter a) of the same legal act, as follows:

- a) Article 5 paragraph (1) letters a), c) and (2) and Article 6 of the GDPR
- b) Articles 12-14 of the GDPR
- c) Article 5 paragraph (1) letter e) and (2) of the GDPR

As such, the operator was sanctioned with:

- a) a fine of 9,947.6 lei, equivalent to 2,000 euros, for the violation of Article 5 paragraph (1) letters a), c) and (2) and Article 6 of the GDPR,
- b) a warning for the violation of Articles 12-14 of the GDPR;
- c) a warning for the violation of Article 5 paragraph (1) letter e) and (2) of the GDPR

The National Supervisory Authority initiated an investigation following the receipt of several petitions from a data subject who reported the use of a GPS monitoring system on a vehicle used during the period when they were employed by the operator Global Ports's Services S.R.L., without being informed about its existence.

Furthermore, from the petitions of the data subject, it was established that, based on a contract concluded by the operator Global Ports's Services S.R.L. with a commercial company, GPS systems were installed both on the rented equipment and on the company car used by the data subject who, in the meantime, had become an employee of the second company, with the data provided by the GPS system being used for the automatic profiling of the individual, namely for monitoring them.

During the investigation, it was found that the operator Global Ports's Services S.R.L.:

- a) processed the data of the data subject, collected through the GPS monitoring system installed on the company car, for a period of 6 months, until January 2024, and continued to process them even after the date on which they were no longer employed by the company, without providing evidence that they had previously used less intrusive methods to achieve the purpose of processing, primarily related to the preparation of travel sheets and monthly attendance records, as well as that they had clearly established a legal basis for processing this data, in relation to the purposes for which the data of the petitioner were to be used, thus violating Article 5 paragraph (1) letters a), c) and (2) and Article 6 of the GDPR.
- b) processed the data of the data subject, including through the GPS monitoring system installed on the company car, for a period of 6 months, until January 2024, and continued to process them even after the date on which they were no longer employed by the company, without providing evidence regarding the transparent and complete information of the data subject concerning the processing of their data, in accordance with Articles 12-14 of the GDPR.
- c) stored the data resulting from the use of the GPS monitoring system for 6 months, without providing evidence that the exceeding of the 30-day period provided by Article 5 of Law no. 190/2018 was based on justified reasons, thus violating Article 5 paragraph (1) letters e) and (2) of Regulation (EU) 2016/679.

At the same time, based on Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, the following corrective measures were ordered:

- a) to ensure compliance with the GDPR of the operations for collecting and further processing personal data, in the sense of reevaluating the necessity of achieving the proposed purposes through the use of data obtained from the use of the GPS monitoring system installed on the company cars of the operator's employees, in relation to the obligations provided by Regulation (EU) 2016/679 and Law no. 190/2018;
- b) to ensure compliance with the GDPR of the operations for collecting and further processing personal data, by providing transparent, correct, and complete information to all data subjects whose personal data are processed by the operator, including the data subject, in accordance with the

provisions of Articles 12-14 of Regulation (EU) 2016/679;

c) to ensure compliance with the GDPR of the operations for collecting and further processing personal data, by limiting the storage period of the data in relation to the purposes of data processing, in accordance with the obligations provided by Regulation (EU) 2016/679 and Law no. 190/2018.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****